

Deepak Rambhau @ Rambhau Tate And Others vs The State Of Maharashtra And Another on 10 March, 2022

Author: V.K. Jadhav

Bench: V.K. Jadhav

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY
BENCH AT AURANGABAD

956 CRIMINAL WRIT PETITION NO.1011 OF 2021

DEEPAK RAMHARI @ RAMBHAU TATE AND OTHERS
VERSUS
THE STATE OF MAHARASHTRA AND ANOTHER

...

Advocate for Petitioners : Mr. Narvade Patil Ravindra B.
APP for Respondents: Mr. S D Ghayal
Advocate for Respondent 2 : Mr. Kanade Angad L

...

CORAM : V.K. JADHAV & SANDIPKUMAR C. MORE, JJ.

Dated: March 10, 2022

...

PER COURT :-

1. Heard finally with consent at admission stage.
2. The petitioners are seeking quashing of the FIR bearing crime no.18 of 2020 registered with Peth Beed Police Station, District Beed for the offence punishable under sections 498-A, 323, 504, 34 of the IPC and also the criminal proceedings vide RCC No.109 of 2020 pending before the 2nd J.M.F.C., Beed on the ground that the parties have arrived at amicable settlement.
3. The learned counsel for the petitioners and the learned counsel appearing for respondent no.2 submit that the petitioner no.1 and respondent no.2 have

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arrived at amicable settlement. They have jointly filed
HMP No.F-41 of 2020 before the Family Court, Beed for
a decree of divorce by mutual consent as provided under
section 13(b) of the Hindu Marriage Act and by
judgment and order dated 29.6.2021 the learned Judge
of the Family Court, Beed has granted a decree of
divorce on mutual consent. The affidavit-in-reply on
behalf of respondent no.2 has also filed to that effect.
Further, respondent no.2 is present before this court.
Since, no amount has been given towards the future
maintenance of respondent no.2, we have directed to
keep the respondent no.2 present before the court. The
respondent no.2 alongwith her father remained present
before us and father of the respondent no.2 has
informed to us that they do not want anything towards
future maintenance of respondent no.2 from the
husband.

4. We have also heard the learned APP for the
respondent no.1-State.

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5. We have carefully gone through the allegations made in the complaint and also perused the charge-sheet. We have also perused the affidavit in reply of the respondent no.2 and also the divorce deed passed in the petition no.F-41 of 2020 by the Family Court, Beed.

6. In the case of Gian Singh vs. State of Punjab and others, reported in (2012) 10 SCC 303, the Supreme Court in para 48 has quoted para 21 of the judgment of the five-Judge Bench of the Punjab and Haryana High Court delivered in Kulwinder Singh Vs. State of Punjab (2007) 4 CTC 769. A five-Judge Bench of the Punjab and Haryana High Court, in para 21 of the judgment, by placing reliance on the various judgments of the Supreme court, has framed the guidelines for quashing of the criminal proceeding on the ground of settlement. Para 21 of the said case of Kulwinder Singh's judgment is reproduced by the Supreme Court in para 48 of the judgment in Gian Singh. Clause 21(a) which is relevant for the present discussion reads as under :-
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"21.

(a) Cases arising from matrimonial discord, even if other offences are introduced for aggravation of the case."

The Supreme Court in paragraph no.61 of the judgment of Gian Singh (supra) has made following observations :-

"61. The position that emerges from the above discussion can be summarised thus: the power of the High Court in quashing a criminal proceeding or FIR or complaint in exercise of its inherent jurisdiction is distinct and different from the power given to a criminal court for compounding the offences under Section 320 of the Code. Inherent power is of wide plenitude with no statutory limitation but it has to be exercised in accord with the guideline engrafted in such power viz; (i) to secure the ends of justice or (ii) to prevent abuse of the process of any Court. In what cases power to quash the criminal proceeding or complaint or F.I.R may be exercised where the offender and victim have settled their dispute would depend on the facts and circumstances of each case and no category can be prescribed. However, before exercise of such power, the High Court must have due regard to the nature and gravity of the crime. Heinous and serious offences of mental depravity or offences like murder, rape, dacoity, etc. cannot be fittingly quashed even though the victim or victim's family and the offender have settled the dispute. Such offences are not private in nature and have serious impact on society. Similarly, any compromise between the victim and offender in relation to the offences under special statutes like Prevention of Corruption Act or the offences

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committed by public servants while working in that

capacity etc; cannot provide for any basis for quashing criminal proceedings involving such offences. But the criminal cases having overwhelmingly and predominatingly civil favour stand on different footing for the purposes of quashing, particularly the offences arising from commercial, financial, mercantile, civil, partnership or such like transactions or the offences arising out of matrimony relating to dowry, etc. or the family disputes where the wrong is basically private or personal in nature and the parties have resolved their entire dispute. In this category of cases, High Court may quash criminal proceedings if in its view, because of the compromise between the offender and victim, the possibility of conviction is remote and bleak and continuation of criminal case would put accused to great oppression and prejudice and extreme injustice would be caused to him by not quashing the criminal case despite full and complete settlement and compromise with the victim. In other words, the High Court must consider whether it would be unfair or contrary to the interest of justice to continue with the criminal proceeding or continuation of the criminal proceeding would tantamount to abuse of process of law despite settlement and compromise between the victim and wrongdoer and whether to secure the ends of justice, it is appropriate that criminal case is put to an end and if the answer to the above question(s) is in affirmative, the High Court shall be well within its jurisdiction to quash the criminal proceeding.

7. The parties have arrived at amicable settlement

and they have decided to end their matrimonial

relations for ever. Even they have obtained a decree of

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divorce by mutual consent. Respondent no.2 is not

seeking any amount towards her future maintenance.

We are thus satisfied that the parties have arrived at

amicable settlement, voluntarily.

8. In view of the above discussion and in terms of the ratio laid down by the Supreme Court in the case of Gian Singh (supra), we proceed to pass the following order.

ORDER

- i. Criminal application is hereby allowed in terms of prayer clause 'b'.
- ii. Criminal application accordingly disposed off.

(SANDIPKUMAR C. MORE, J.) (V.K. JADHAV, J.) ...

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